

Pro Se 7 (Rev. 12/16) Complaint for Employment Discrimination

UNITED STATES DISTRICT COURT

for the

Northern District of Florida

Pensacola Division

DEBRA NELSON

Case No. 3:25-cv-01447-MCR-ZCB

(to be filled in by the Clerk's Office)

Jury Trial: (check one) ☒ Yes ☐ No

-v-

Amentum Government Services Parent Holdings LLC,
 CLARENCE XANDER,
 HEATHER GUNN, JANICE HUGHES, DAKOTA THOMAS,
 ELIAS VELASQUEZ AND YUSEL ABDUL-JAMI

Defendant(s)

COMPLAINT FOR EMPLOYMENT DISCRIMINATION

I. The Parties to This Complaint

A. The Plaintiff(s)

Provide the information below for each plaintiff named in the complaint. Attach additional pages if needed.

Name Debra Nelson

Street Address

City and County

State and Zip Code

Telephone Number

E-mail Address

B. The Defendant(s)

Provide the information below for each defendant named in the complaint, whether the defendant is an individual, a government agency, an organization, or a corporation. For an individual defendant, include the person's job or title (if known). Attach additional pages if needed.

Pro Se 7 (Rev. 12/16) Complaint for Employment Discrimination

Defendant No. 1

Name	Amentum Government Services Parent Holdings LLC
Job or Title <i>(if known)</i>	Employer
Street Address	NAS Whiting Field, 7701 USS Enterprise Street, Building 1429
City and County	Milton - Santa Rosa County
State and Zip Code	FL 32570
Telephone Number	850-484-6250
E-mail Address <i>(if known)</i>	janice.hughes@amentum.com

Defendant No. 2

Name	Clarence Xander
Job or Title <i>(if known)</i>	Site Manager
Street Address	NAS Whiting Field, 7701 USS Enterprise Street, Building 1429
City and County	Milton - Santa Rosa County
State and Zip Code	FL 32570
Telephone Number	850-484-6258
E-mail Address <i>(if known)</i>	Clarence.Xander@amentum.com

Defendant No. 3

Name	Heather Gunn
Job or Title <i>(if known)</i>	Business Manager
Street Address	NAS Whiting Field, 7701 USS Enterprise Street, Building 1429
City and County	Milton - Santa Rosa County
State and Zip Code	FL 32570
Telephone Number	850-484-6266
E-mail Address <i>(if known)</i>	Heather.Gunn@amentum.com

Defendant No. 4

Name	Ja'nice Hughes
Job or Title <i>(if known)</i>	Human Resource Generalist
Street Address	NAS Whiting Field, 7701 USS Enterprise Street, Building 1429
City and County	Milton - Santa Rosa County
State and Zip Code	FL 32570
Telephone Number	850-484-6250
E-mail Address <i>(if known)</i>	janice.hughes@amentum.com

C. Place of Employment

The address at which I sought employment or was employed by the defendant(s) is

Name	Amentum
Street Address	NAS Whiting Field 7701 USS Enterprise Street Building 1429
City and County	Milton - Santa Rosa County
State and Zip Code	FL 32570
Telephone Number	850-484-6250

II. Basis for Jurisdiction

This action is brought for discrimination in employment pursuant to *(check all that apply)*:

- ☒ Title VII of the Civil Rights Act of 1964, as codified, 42 U.S.C. §§ 2000e to 2000e-17 (race, color, gender, religion, national origin).

(Note: In order to bring suit in federal district court under Title VII, you must first obtain a Notice of Right to Sue letter from the Equal Employment Opportunity Commission.)

- ☐ Age Discrimination in Employment Act of 1967, as codified, 29 U.S.C. §§ 621 to 634.

(Note: In order to bring suit in federal district court under the Age Discrimination in Employment Act, you must first file a charge with the Equal Employment Opportunity Commission.)

- ☐ Americans with Disabilities Act of 1990, as codified, 42 U.S.C. §§ 12112 to 12117.

(Note: In order to bring suit in federal district court under the Americans with Disabilities Act, you must first obtain a Notice of Right to Sue letter from the Equal Employment Opportunity Commission.)

- ☐ Other federal law *(specify the federal law)*:

- ☒ Relevant state law *(specify, if known)*:

Florida Whistleblower Act, Defamation, Negligent Supervision, Civil Conspiracy and Intentional Infliction of Emotional Distress.

- ☐ Relevant city or county law *(specify, if known)*:

III. Statement of Claim

Write a short and plain statement of the claim. Do not make legal arguments. State as briefly as possible the facts showing that each plaintiff is entitled to the damages or other relief sought. State how each defendant was involved and what each defendant did that caused the plaintiff harm or violated the plaintiff's rights, including the dates and places of that involvement or conduct. If more than one claim is asserted, number each claim and write a short and plain statement of each claim in a separate paragraph. Attach additional pages if needed.

A. The discriminatory conduct of which I complain in this action includes *(check all that apply)*:

- ☐ Failure to hire me.
- ☐ Termination of my employment.
- ☐ Failure to promote me.
- ☐ Failure to accommodate my disability.
- ☐ Unequal terms and conditions of my employment.
- ☒ Retaliation.
- ☒ Other acts *(specify)*: Hostile Work Environment

(Note: Only those grounds raised in the charge filed with the Equal Employment Opportunity Commission can be considered by the federal district court under the federal employment discrimination statutes.)

B. It is my best recollection that the alleged discriminatory acts occurred on date(s)
5/28/2025 to 8/12/2025

C. I believe that defendant(s) *(check one)*:

- ☒ is/are still committing these acts against me.
- ☐ is/are not still committing these acts against me.

D. Defendant(s) discriminated against me based on my *(check all that apply and explain)*:

- ☐ race _____
- ☐ color _____
- ☒ gender/sex Female
- ☐ religion _____
- ☐ national origin _____
- ☐ age *(year of birth)* _____ *(only when asserting a claim of age discrimination.)*
- ☐ disability or perceived disability *(specify disability)* _____

E. The facts of my case are as follows. Attach additional pages if needed.

1. Plaintiff began working as an NDI Technician at NAS Whiting Field and performed her duties satisfactorily.
2. On March 27, 2025, Plaintiff reported necessary audit corrections.
3. From May–August 2025, Plaintiff reported coworker Yusef Abdul-Jami's repeated noncompliance with inspection protocols. Instead of correcting the violations, management labeled Plaintiff "aggressive."
4. On May 28, 2025, Defendant Elias Velasquez cursed at Plaintiff in a meeting. Plaintiff was later falsely accused of using profanity, which management withheld until August 5, 2025.
5. On July 30, 2025, Plaintiff discovered a broken cable that prevented an eddy current inspection. The next day, Defendant Abdul-Jami produced a replacement cable he had previously denied possessing and told supervision the cable worked, undermining Plaintiff's credibility.
6. On August 5, 2025, Plaintiff informed corporate management she intended to sue. On August 6, 2025, Defendant Dakota Thomas issued a false Written Reprimand accusing Plaintiff of unauthorized leave.
7. On August 13, 2025, Defendant Janice Hughes sent Plaintiff a letter threatening discipline if her disability claim was denied.
8. As a result of Defendants' actions, Plaintiff was forced to take two separate 30-day medical leaves, losing wages and suffering emotional distress.

Counts:

- Count I – Gender Discrimination (Title VII): Against Xander, Hughes, Gunn, Thomas, and Velasquez.
- Count II – Retaliation (Title VII): Against Thomas, Velasquez, Hughes, Gunn, and Abdul-Jami.
- Count III – Hostile Work Environment (Title VII): Against Velasquez, Xander, Thomas, Gunn, Hughes and Abdul-Jami.
- Count IV – Whistleblower Retaliation (Florida Whistleblower Act): Against Amentum, Xander, Thomas, Velasquez, Abdul-Jami and Hughes.
- Count V – Defamation (Florida law): Against Velasquez and Thomas.
- Count VI – Negligent Supervision (Florida law): Against Amentum.
- Count VII – Civil Conspiracy (Florida law): Against Xander, Thomas, Velasquez, Gunn, Hughes and Abdul-Jami.
- Count VIII – Intentional Infliction of Emotional Distress (Florida law): Against Xander, Thomas, Hughes, Velasquez, and Abdul-Jami.

(Note: As additional support for the facts of your claim, you may attach to this complaint a copy of your charge filed with the Equal Employment Opportunity Commission, or the charge filed with the relevant state or city human rights division.)

IV. Exhaustion of Federal Administrative Remedies

- A. It is my best recollection that I filed a charge with the Equal Employment Opportunity Commission or my Equal Employment Opportunity counselor regarding the defendant's alleged discriminatory conduct on (date)

August 12, 2025

- B. The Equal Employment Opportunity Commission (check one):

☐

has not issued a Notice of Right to Sue letter.

☒

issued a Notice of Right to Sue letter, which I received on (date) 8/14/2025

(Note: Attach a copy of the Notice of Right to Sue letter from the Equal Employment Opportunity Commission to this complaint.)

C. Only litigants alleging age discrimination must answer this question.

Since filing my charge of age discrimination with the Equal Employment Opportunity Commission regarding the defendant's alleged discriminatory conduct *(check one)*:

- ☐ 60 days or more have elapsed.
☒ less than 60 days have elapsed.

V. Relief

State briefly and precisely what damages or other relief the plaintiff asks the court to order. Do not make legal arguments. Include any basis for claiming that the wrongs alleged are continuing at the present time. Include the amounts of any actual damages claimed for the acts alleged and the basis for these amounts. Include any punitive or exemplary damages claimed, the amounts, and the reasons you claim you are entitled to actual or punitive money damages.

As a direct and proximate result of the Defendants' unlawful actions, Plaintiff has suffered lost wages, emotional distress, reputational harm, and other compensatory damages. Lost wages include, but are not limited to:

- First 30-day leave (May 30 - July 2, 2025): $\$44.66/\text{hour} \times 160 \text{ hours} = \$7,145.60$
- Second 30-day leave (August 9 - September 19, 2025): $\$45.46/\text{hour} \times 160 \text{ hours} = \$7,273.60$
- Total wage loss to date: \$14,419.20 (excluding lost overtime, benefits, and retirement contributions).

VI. Certification and Closing

Under Federal Rule of Civil Procedure 11, by signing below, I certify to the best of my knowledge, information, and belief that this complaint: (1) is not being presented for an improper purpose, such as to harass, cause unnecessary delay, or needlessly increase the cost of litigation; (2) is supported by existing law or by a nonfrivolous argument for extending, modifying, or reversing existing law; (3) the factual contentions have evidentiary support or, if specifically so identified, will likely have evidentiary support after a reasonable opportunity for further investigation or discovery; and (4) the complaint otherwise complies with the requirements of Rule 11.

A. For Parties Without an Attorney

I agree to provide the Clerk's Office with any changes to my address where case-related papers may be served. I understand that my failure to keep a current address on file with the Clerk's Office may result in the dismissal of my case.

Date of signing: 9/19/2025

Signature of Plaintiff

Printed Name of Plaintiff Debra Nelson

Pro Se 7 (Rev. 12/16) Complaint for Employment Discrimination

Defendant No. 5

Name	Dakota Thomas
Job or Title <i>(if known)</i>	Maintenance Supervisor
Street Address	NAS Whiting Field, 7701 USS Enterprise Street, Building 1429
City and County	Milton - Santa Rosa County
State and Zip Code	FL 32570
Telephone Number	(928) 919-4987
E-mail Address <i>(if known)</i>	dakota.thomas@amentum.com

Defendant No. 6

Name	Elias Velasquez
Job or Title <i>(if known)</i>	Maintenance Supervisor
Street Address	NAS Whiting Field, 7701 USS Enterprise Street, Building 1429
City and County	Milton - Santa Rosa County
State and Zip Code	FL 32570
Telephone Number	(850) 816-9093
E-mail Address <i>(if known)</i>	elias.velasquez@amentum.com

Defendant No. 7

Name	Yusef Abdul-Jami
Job or Title <i>(if known)</i>	NDI Technician
Street Address	NAS Whiting Field, 7701 USS Enterprise Street, Building 1429
City and County	Milton - Santa Rosa County
State and Zip Code	FL 32570
Telephone Number	(210) 618-5689
E-mail Address <i>(if known)</i>	yusef.abdul-jami@amentum.com

Defendant No.

Name	
Job or Title <i>(if known)</i>	
Street Address	
City and County	
State and Zip Code	
Telephone Number	
E-mail Address <i>(if known)</i>	

IN THE UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEBRA NELSON

Plaintiff,

v.

Amentum Government Services Parent
Holdings LLC,

CLARENCE XANDER, JANICE HUGHES,

HEATHER GUNN, DAKOTA THOMAS,

ELIAS VELASQUEZ, and

YUSEF ABDUL-JAMI,

Defendants,

C.A. No.: 3:25-cv-01447-MCR-ZCB

SECOND AMENDED COMPLAINT AND DEMAND FOR JURY TRIAL

JURISDICTION AND VENUE

1. This is an action for damages and equitable relief under Title VII of the Civil Rights Act of 1964, 42 U.S.C. §2000e et seq., the Florida Whistleblower Act, and Florida common law, including claims for defamation, negligent supervision, civil conspiracy, and intentional infliction of emotional distress.
2. This Court has subject matter jurisdiction pursuant to 28 U.S.C. §1331 (federal question) because Plaintiff asserts claims under Title VII. The Court also has supplemental jurisdiction pursuant to 28 U.S.C. §1367 over Plaintiff's state law claims because they arise from the same nucleus of operative facts as her federal claims.
3. Venue is proper in the Northern District of Florida, Pensacola Division, under 28 U.S.C. §1391(b), as the events giving rise to these claims occurred in Santa Rosa County, Florida.

Case No. 3:25-cv-01447-MCR-ZCB

PARTIES

4. **Plaintiff DEBRA NELSON** is a resident of Florida and was employed by Defendants as an NDI Technician at NAS Whiting Field in Santa Rosa County, Florida.

5. **Defendant AMENTUM GOVERNMENT SERVICES PARENT HOLDINGS LLC** is a Foreign Limited Liability Company registered to do business in Florida, with its Registered Agent being C T Corporation System, 1200 South Pine Island Road, Plantation, FL 33324. Its sole member is Amentum Holdings LLC, located at 4800 Westfields Blvd, Suite 400, Chantilly, VA 20151.

6. **Defendant CLARENCE XANDER** was at all relevant times the Site Manager for Amentum at NAS Whiting Field.

7. **Defendant JANICE HUGHES** was at all relevant times the Human Resources representative for Amentum at NAS Whiting Field.

8. **Defendant HEATHER GUNN** was at all relevant times the Business Manager for Amentum at NAS Whiting Field.

9. **Defendant DAKOTA THOMAS** was at all relevant times a Maintenance Supervisor for Amentum at NAS Whiting Field.

10. **Defendant ELIAS VALASQUEZ** was at all relevant times a Maintenance Supervisor for Amentum at NAS Whiting Field.

11. **Defendant YUSEF ABDUL-JAMI** was at all relevant times an NDI Technician for Amentum at NAS Whiting Field.

FACTUAL ALLEGATIONS

1. Plaintiff Debra Nelson was employed by Amentum as an NDI Technician at NAS Whiting Field in Santa Rosa County, Milton, Florida, and consistently performed her duties in a satisfactory manner.
2. On March 27, 2025, during a program NDI audit, Plaintiff reported necessary audit corrections to her supervisor, which were addressed.
3. Shortly thereafter, Plaintiff complained that her male coworker, Defendant Yusef Abdul-Jami, refused to assist her with a work-related locker issue. She documented this in text messages and provided them to management.
4. Between May 2025 and August 2025, Plaintiff reported repeated noncompliance by Defendant Abdul-Jami with inspection procedures. Management ignored her reports, protected Abdul-Jami, and began labeling Plaintiff as "aggressive" and as having an "attitude."

Case No. 3:25-cv-01447-MCR-ZCB

5. On May 29, 2025, during a work meeting, Defendant Elias Valasquez cursed at Plaintiff. Plaintiff was later falsely accused of responding with profanity, a claim that was withheld from her until August 5, 2025.
6. On August 5, 2025, corporate management disclosed this false allegation for the first time.
7. On August 6, 2025—the day after Plaintiff informed corporate management that she intended to sue—Defendant Dakota Thomas issued a Written Reprimand falsely alleging Plaintiff took “unauthorized leave” on July 31 and August 1, 2025. (See Exhibit B)
8. In reality, on July 15, 2025, Plaintiff had requested unpaid bereavement leave via email to Payroll Specialist Tionne Thomas and received confirmation of receipt.
9. The Written Reprimand further alleged Plaintiff told Valasquez her leave was approved by HR and management, which was false. Plaintiff explained she lacked accrued time and was seeking unpaid leave approval.
10. The reprimand also alleged Plaintiff failed to call in, yet no supervisor contacted her, suggesting a deliberate setup.
11. Plaintiff immediately submitted a written rebuttal identifying the retaliatory nature of the discipline and citing prior occasions when unpaid leave had been granted without HR approval. (See Exhibit C)
12. As a result of Defendants’ actions, Plaintiff was forced to take two separate 30-day leaves of absence, resulting in lost wages and emotional distress.
13. On August 13, 2025, Defendant Janice Hughes sent Plaintiff a letter warning that if her short-term disability claim was denied, her leave would be deemed “unauthorized” and subject to discipline. Plaintiff viewed this as threatening and retaliatory. (See Exhibit D)

II. STATEMENT OF CLAIMS

Count I – Gender Discrimination (Title VII)

Defendants (**Xander, Thomas and Velasquez**) treated Plaintiff less favorably because she is female. Defendant Abdul-Jami refused to assist her, while male employees were not disciplined for noncompliance. Management labeled Plaintiff as “aggressive” for raising concerns, but did not apply those labels to male employees.

Count II – Retaliation (Title VII)

Defendants (**Xander, Gunn, Hughes, Thomas, Velasquez and Abdul-Jami**) retaliated against Plaintiff for reporting safety violations and discrimination. Specifically, Defendant Thomas issued a false Written Reprimand on August 6, 2025, one day after Plaintiff told corporate she intended to sue. Defendant Hughes sent a retaliatory letter on August 13, 2025, threatening discipline regarding her leave.

Case No. 3:25-cv-01447-MCR-ZCB

Count III – Hostile Work Environment (Title VII)

Defendants' (**Xander, Gunn, Hughes, Thomas, and Velasquez**) conduct—including repeated false accusations, refusal to address misconduct, and derogatory treatment—created a hostile and intimidating workplace for Plaintiff. Defendant Velasquez cursed at Plaintiff in a meeting, and management tolerated ongoing harassment.

Count IV – Whistleblower Retaliation (Florida Whistleblower Act)

Plaintiff reported FAA compliance violations. Defendants (**Xander, Gunn, Hughes, Thomas, Velasquez and Abdul-Jami**) ignored these reports and instead disciplined Plaintiff under false pretenses, including the August 6, 2025 Written Reprimand and Hughes's August 13, 2025 letter.

Count V – Defamation (Florida Common Law)

Defendants **Velasquez and Thomas**, published false statements that Plaintiff used profanity in a meeting and took unauthorized leave. These statements harmed her professional reputation.

Count VI – Negligent Supervision (Florida Common Law)

Defendant **Amentum** failed to properly supervise its managers and employees (**Xander, Hughes, Thomas, Velasquez, Abdul-Jami**), who engaged in harassment, retaliation, and defamation against Plaintiff.

Count VII – Civil Conspiracy (Florida Common Law)

Defendants (**Xander, Gunn, Hughes, Thomas, Velasquez and Abdul-Jami**) acted in concert to fabricate allegations, including the false leave accusation and profanity charge, in order to retaliate against Plaintiff and protect a male coworker from accountability.

Count VIII – Intentional Infliction of Emotional Distress (Florida Common Law)

Defendants (**Xander, Thomas, Hughes, Velasquez, and Abdul-Jami**) engaged in extreme and outrageous conduct by issuing false discipline, making false accusations, withholding information denying Plaintiff a chance to defend herself, sabotaging Plaintiff's work, and sending threatening letters. This conduct was intentional and caused Plaintiff severe emotional distress, requiring two medical leaves of absence. Defendant Amentum is liable for the actions of its agents under the doctrine of respondeat superior.

DAMAGES

Plaintiff has suffered lost wages, emotional distress, reputational harm, and other compensatory damages. Lost wages include:

- First 30-day leave (May 30 – July 2, 2025) at \$44.66/hour × 160 hours = **\$7,145.60**
- Second 30-day leave (August 9 – September 19, 2025) at \$45.46/hour × 160 hours = **\$7,273.60**

Total wage loss to date: **\$14,419.20** (excluding lost overtime, benefits, and retirement contributions)

Plaintiff also seeks punitive damages under Title VII and Florida law, as well as

Case No. 3:25-cv-01447-MCR-ZCB

attorney's fees and costs.

PRAYER FOR RELIEF

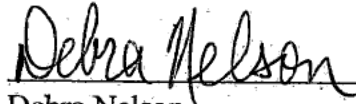
WHEREFORE, Plaintiff respectfully requests that this Court enter judgment in her favor and against Defendants for:

- a. Back pay, front pay, and lost benefits;
- b. Compensatory damages for emotional distress and reputational harm;
- c. Punitive damages as allowed by law;
- d. Attorney's fees and costs;
- e. Pre- and post-judgment interest; and
- f. All other relief this Court deems just and proper.

JURY DEMAND

Plaintiff demands trial by jury on all issues so triable.

Respectfully submitted 19th of September, 2025,



Debra Nelson

Plaintiff, Pro Se



EXHIBIT INDEX

Exhibit A – EEOC Right-to-Sue Letter

Exhibit B – Written Reprimand dated August 6, 2025

Exhibit C – Plaintiff's Rebuttal to Written Reprimand dated August 6, 2025

Exhibit D - August 13, 2025 HR Letter on Medical Leave

EXHIBIT A



U.S. EQUAL EMPLOYMENT OPPORTUNITY COMMISSION

Miami District Office
100 SE 2nd St, Suite 1500
Miami, FL 33131
(800) 669-4000
Website: www.eeoc.gov

DETERMINATION AND NOTICE OF RIGHTS

(This Notice replaces EEOC FORMS 161, 161-A & 161-B)

Issued On: 08/14/2025

To: Ms. DEBRA E. NELSON

Charge No: 510-2025-08373

EEOC Representative and email: RODNEY MOZARD
INVESTIGATOR
RODNEY.MOZARD@EEOC.GOV

DETERMINATION AND NOTICE OF RIGHTS

The EEOC issues the following determination: The EEOC will not proceed further with its investigation and makes no determination about whether further investigation would establish violations of the statute. This does not mean the claims have no merit. This determination does not certify that the respondent is in compliance with the statutes. The EEOC makes no finding as to the merits of any other issues that might be construed as having been raised by this charge.

NOTICE OF YOUR RIGHT TO SUE

This is official notice that the EEOC has dismissed your charge and has issued you notice of your right to sue the respondent(s) on this charge. If you choose to file a lawsuit against the respondent(s) on this charge under federal law in federal or state court, **your lawsuit must be filed WITHIN 90 DAYS of your receipt of EEOC's official notice of dismissal.** You should keep a record of the date you received the EEOC's official notice of dismissal. Your right to sue based on this charge will be lost if you do not file a lawsuit in court within 90 days. (The time limit for filing a lawsuit based on a claim under state law may be different.)

If you file a lawsuit based on this charge, please sign-in to the EEOC Public Portal and upload the court complaint to charge 510-2025-08373

On behalf of the Commission,

Digitally Signed By: Evangeline Hawthorne
08/14/2025

Evangeline Hawthorne
Director

EXHIBIT B**amentum**

The intranet-posted version of this guidance is the document of record.

WRITTEN REPRIMAND**August 6, 2025****To: Debra Nelson****Employee ID: 621036****From: Dakota Thomas, Aircraft Maintenance Supervisor****Subject: WRITTEN REPRIMAND****CC: Personnel File****Current Violation(s) / Cause:**

The purpose of this letter is to issue you a written reprimand for violation of Offense 5c *Failing to report absence within ½ hour of start of work shift*, Offense 19 *Insubordination* and Offense 26 *Deliberate falsifications of facts to management or any other form of dishonesty*.

Circumstances of Violations:

On 30 JUL 2025, you requested leave through supervisor Elias Velasquez for 31 JUL 2025 and 1 AUG 2025 via form "HR-313 Leaves of Absence – Paid and Unpaid". Upon receipt, Mr. Velasquez inquired as to whether there would be issues taking the leave since you did not have the required amount of SKA/VAC time to cover the time off. You advised Velasquez that you spoke with upstairs, and that there were no issues with taking the leave. Velasquez refused to approve the leave and contacted the HR and Business Manager on 30 JUL 2025 to verify the status of your leave. The Business Manager and HR did inform your supervisor Elias Velasquez that you did not speak to them nor was your leave of absence approved by them. Therefore, the leave was never approved by a supervisor, and you were not authorized to take the leave that was taken.

On 30 July 25, you spoke with the Site payroll administrator and advised her that you had an approved leave chit when you inquired how to code your timesheet since you did not have enough leave to cover the time requested. Payroll advised you how to code the time with the information given. The information you provided to payroll was a false statement in that you did not have an approved leave chit. Your timecard has since been amended to reflect the appropriate code of Unpaid/Unauthorized Time.

You did not follow the established leave policy process. You did not follow the directions of your supervisor which was for you to speak with HR or the Business Manager to discuss your request for leave or a Leave of Absence. You proceeded to take off work on 31 JUL 2025 and 1 AUG 2025 without authorization and coded your timecard as Unpaid/Authorized Time.

You are reminded that Amentum and the Union has established procedures, pertaining to taking time off from work: Vacation, Sick Time, Personal Leave of Absence, Short Term Disability, Federal Medical Leave of absence. This information is provided to you in the Union CBA Handbook and the Amentum Paid and Unpaid leave policy (located on the company intranet).

This letter will remain in your personnel file for six months from the date of issuance, in accordance with our Collective Bargaining Agreement Bridge Agreement, expiring March 31, 2026.

Employee Acknowledgment

My signature on this form indicates that I have discussed this concern identified above with my manager, received a copy of this written warning, and acknowledge its contents. It does not necessarily indicate that I agree with its contents. I understand that immediate, sustained improvement is required in the area(s) expressed above, or further disciplinary action, up to and

Internal Information
Ref: HR-314 Disciplinary Process

HR-314-F-2 Written Warning HR-314-F-2 | Version No. 2
Issue Date: 1/31/2021 | Review/Revision Date: 4/23/2024

EXHIBIT B**amentum**

The intranet-posted version of this guidance is the document of record.

including termination of employment, may occur. I further acknowledge that this document will be included in my personnel file.

Employee Signature

Date

8/6/2025

Manager Signature

Date

8/6/2025

If applicable:

James Cerny
Witness Name

[Signature]
Witness Signature

8-6-25
Date

WRITTEN REPRIMAND

Should you wish to do so, you may respond to this Written Reprimand in writing within five (5) days of receipt of this letter. If you do so, your response will be included with this Written Reprimand and added to your personnel file.

I refuse to sign because I was never told to go to HR. I talked to Tionne and I was told that I had to charge my time if I didn't have enough time to use ^{the} unauthorized code. At no time was I told to go to HR. I disagree with this write up which is retaliatory.

EXHIBIT C

Written Rebuttal – August 6, 2025

Disciplinary Write-up

August 7, 2025

This is my formal rebuttal to the August 6, 2025 write-up for 'unauthorized time'.

In July, I took bereavement leave July 10, 11, 14 & 15 and unpaid leave July 16, 17, 18 and 21 leave coordinated with Payroll Specialist, Tionne only. HR approval was never required or mentioned.

The sudden change in protocol and write-up without attempt to contact me shows retaliation. I request the reprimand be removed or this rebuttal be attached.

Sincerely,
Debra Nelson

EXHIBIT D



Date: August 13, 2025
To: Debra Nelson
From: Janice Hughes
Subject: Request for Medical Leave of Absence

Per our discussion, you have requested a medical leave of absence. In accordance with the Company's Medical Leave Policy HR-316, employees are required to contact The Hartford to file a Family and Medical Leave and/or STD claim.

I've attached a copy of the Medical Leave procedure and Amentum FMLA & Disability Claim flyer for reference. To file a claim, you will need to contact The Hartford at 877-877-6043 or complete an online form via [HTTPS://ABILITYADVANTAGE.THEHARTFORD.COM](https://ABILITYADVANTAGE.THEHARTFORD.COM).

Amentum has received notification that The Hartford has created a Short-Term Disability claim and a Leave of Absence claim for you, Debra Nelson, as of 08/06/2025. The Hartford will contact your treating physician to obtain the needed information to either approve or deny your request for Short-term Disability and a medical leave of absence.

If your claim is approved, you will be required to provide periodic updates to me on your return-to-work status.

If your claim is denied, the time that you have taken during the approval process will be changed from authorized leave to unauthorized leave. You will be required to return to work immediately. If you choose not to return to work, disciplinary actions may be taken.

You are tentatively approved for a Medical Leave of Absence beginning Friday, August 8, 2025, pending receipt of the final determination on your claim by The Hartford.

Upon receipt of the determination from The Hartford, I will be sending you additional communication outlining your leave status. Should you have any questions, please do not hesitate to contact me at Janice.Hughes@amentum.com or 850-484-6250

Regards,

Janice
Hughes

Digitally signed by Janice Hughes
DN: cn=Janice Hughes,
o=Amentum/T44, ou=Critical Mission
email=Janice.Hughes@amentum.com
Date: 2025.08.13 11:54:46 -0500

Janice Hughes
Human Resource Generalist

IN THE UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEBRA NELSON

Plaintiff,

v.

Amentum Government Services Parent
Holdings LLC,
CLARENCE XANDER, JANICE HUGHES,
HEATHER GUNN, DAKOTA THOMAS,
ELIAS VELASQUEZ, and
YUSEF ABDUL-JAMI,

Defendants,

C.A. No.: 3:25-cv-01447-MCR-ZCB

SECOND AMENDED COMPLAINT

ATTACHMENT TO PRO SE FORM

STATEMENT OF CLAIMS SECTION III

I. Statement of Claims

Count I – Gender Discrimination (Title VII)

Defendants (**Xander, Thomas and Velasquez**) treated Plaintiff less favorably because she is female. Defendant Abdul-Jami refused to assist her; while male employees were not disciplined for noncompliance. Management labeled Plaintiff as “aggressive” for raising concerns, but did not apply those labels to male employees.

Count II – Retaliation (Title VII)

Defendants (**Xander, Gunn, Hughes, Thomas, Velasquez and Abdul-Jami**) retaliated against Plaintiff for reporting safety violations and discrimination. Specifically, Defendant Thomas issued a false Written Reprimand on August 6, 2025, one day after Plaintiff told corporate she intended to sue. Defendant Hughes sent a retaliatory letter on August 13, 2025, threatening discipline regarding her leave.

Count III – Hostile Work Environment (Title VII)

Defendants’ (**Xander, Gunn, Hughes, Thomas, and Velasquez**) conduct—including repeated false accusations, refusal to address misconduct, and derogatory treatment—created a hostile and intimidating workplace for Plaintiff. Defendant Velasquez cursed at Plaintiff in a meeting, and management tolerated ongoing harassment.

Count IV – Whistleblower Retaliation (Florida Whistleblower Act)

Plaintiff reported FAA compliance violations. Defendants (**Xander, Gunn, Hughes, Thomas, Velasquez and Abdul-Jami**) ignored these reports and instead disciplined Plaintiff under false pretenses, including the August 6, 2025 Written Reprimand and Hughes’s August 13, 2025 letter.

Case No. 3:25-cv-01447-MCR-ZCB

Count V – Defamation (Florida Common Law)

Defendants **Velasquez and Thomas**, published false statements that Plaintiff used profanity in a meeting and took unauthorized leave. These statements harmed her professional reputation.

Count VI – Negligent Supervision (Florida Common Law)

Defendant **Amentum** failed to properly supervise its managers and employees (Xander, Hughes, Thomas, Velasquez, Abdul-Jami), who engaged in harassment, retaliation, and defamation against Plaintiff.

Count VII – Civil Conspiracy (Florida Common Law)

Defendants (**Xander, Gunn, Hughes, Thomas, Velasquez and Abdul-Jami**) acted in concert to fabricate allegations, including the false leave accusation and profanity charge, in order to retaliate against Plaintiff and protect a male coworker from accountability.

Count VIII – Intentional Infliction of Emotional Distress (Florida Common Law)

Defendants (**Xander, Thomas, Hughes, Velasquez, and Abdul-Jami**) engaged in extreme and outrageous conduct by issuing false discipline, making false accusations, withholding information denying Plaintiff a chance to defend herself, sabotaging Plaintiff's work, and sending threatening letters. This conduct was intentional and caused Plaintiff severe emotional distress, requiring two medical leaves of absence. Defendant Amentum is liable for the actions of its agents under the doctrine of respondeat superior.

Respectfully submitted 19th of September, 2025;



Debra Nelson
Plaintiff, Pro Se

